

A catastrophic character assassination & conspiracy to pervert the course of justice not bereft of manslaughter

Dr RICHARD MCLEAN is a gentleman and a scholar, and a 25+ year public mental health advocate having spoken publicly about recovery especially young people from Keynote speeches in Sydney Melbourne, to Warnambool, Parliament House in Canberra, Dubbo to across the seas at the College of Philosophical and Religious studies in Montreal, Canada.

Today, 10/05/2022 he is a victim of a systemic Government oppression and a movement to render him a vagrant.

It has worked.

This is an incalculable amount of financial and health detriment in which it was a major catalyst for Dr Mclean's 'fatal' suicide within Werivbee Mercy Hospital in feb, 2021.

The CDDC scheme for detriment caused by Government departments that can acknowledge compensation to victims, has been denied by the Federal Police, and The Finance Minister Birmingham, and now the Office of Prime Minister and Cabinet plays a resonant role in the oppression, citing D does not exist.

Currently he is homeless, survived a 'fatal' suicide attempt in a public Hospital)the result of systemic government oppression and libel/slander) and an unthinkable amount of victimisation that has led him to be:

1. Banned from reporting to police
2. Banned from any litigation
3. Banned as a whistleblower at IBAC, APRA,ASIC and The Commonwealth Ombudsman.

He is squatting without enough food, no money having been systemically set up to

fail over and over via many government agencies.

The charter of human rights of people with a disability was ratified by the Government in 2008.

It states a person with a disability:

Must have access to litigation

Must be equal before the law

Not be discriminated against

Not be exploited

Not be experimented upon

Not be arbitrarily denied life

Not be tortured

On 22nd Feb Dr Mclean had a letter from

Adviser

FOI Section

Department of the Prime Minister and Cabinet

Stating

I refer your request of 7 February 2022 for access to

documents held by the Department of the Prime Minister and Cabinet under the *Freedom of Information Act 1982*.

The current due date for a decision on this request is 9 March 2022. Regrettably, the Department is not currently in a position to finalise the decision by this date. The Department is now undertaking further searches to ensure that any documents covered by the scope of your request are identified.

Accordingly, we are seeking your agreement to a 30-day extension of time under section 15AA of the FOI Act.

Further a letter fro OAIC was returned on 16th of March RE:

Our reference: RQ22/00794 Agency reference: FOI/2022/045

Dr Rich McLean

Sent by email: richarddrawsstuff@gmail.com

The office prime Minister and cabinet was granted an extension, the reason being my case was to 'voluminous and complex'

Extension of time application by Department of the Prime

Minister and Cabinet

Dear Dr McLean

I write to advise that on 7 March 2022 the Office of the Australian Information Commissioner (the OAIC) received an application from Department of the Prime Minister and Cabinet (Department) for an extension of time, to process your FOI request of 7 February 2022.

The Department has applied for an extension of time under s 15AB of the *Freedom of Information Act 1982* (Cth) because your request is considered to be voluminous and/or complex.

The Department has advised the OAIC that:

- The Department considers this request to be complex and voluminous.
- There are approximately 1187 Outlook items that are being reviewed by the Department for relevance.
- The Department is attempting to identify the documents that potentially contain your personal information. However, the absence of any Departmental reference, identifier or date range in the request has introduced a level of complexity in identifying material containing your personal information and not that of a third party.

The Department has requested an **extension to 8 April 2022**. I will take any comments you may have to make into account when deciding the application.

Please respond to this email by **close of business 21 March 2022**. If I do not hear from you by this date, the decision maker will make a decision on the basis of the information provided to me by the Department.

You will be notified of the decision once the matter has

been finalised.

Further information about extension of time requests may be found on our website at
Extensions of time.

Contact

If you have any questions, please contact me on +61 2 9284 9815 or via email to Summen.Sarwar@oaic.gov.au.
In all correspondence, please quote OAIC reference

Summen.Sarwar@oaic.gov.au. In all correspondence, please quote OAIC reference number at the top of this letter.

Yours sincerely



OAIC



Summen Sarwar | Assistant Review and Investigation Advisor
Investigations and Compliance
Freedom of Information Regulatory Group
Office of the Australian Information Commissioner

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On 14th April, ‘voluminous and complex;’
suddenly meant nothing existed

Reference: FOI/2022/045

FREEDOM OF INFORMATION ACT 1982

ONE NATIONAL CIRCUIT BARTON

REQUEST BY: DECISION BY:

Dr Richard McLean

By email: richarddrawsstuff@gmail.com

Dear Dr McLean

Dr Richard McLean

Ms Petra Gartmann Assistant Secretary Legal Policy Branch

I refer to your email of 7 February 2022 in which you made a request to the Department of the Prime Minister and Cabinet (the **Department**) under the *Freedom of Information Act 1982* (the **FOI Act**) in the following terms:

I request all information government agencies hold on me please

Please note we do not hold records of government agencies other than the Department. We have therefore treated your request as asking for information about you that is contained in documents held by the Department.

Authorised decision-maker

I am authorised to make this decision in accordance with arrangements approved by the Department's Secretary under section 23 of the FOI Act.

Decision

I have decided to refuse your request under section 24A(1)(b) of the FOI Act, on the basis that the Department has taken all reasonable steps to locate the documents you have requested, and those documents cannot be found or do not exist.

In making this decision, I have had regard to the following material: •
the FOI request;

- searches undertaken in relation to your request;

- the FOI Act; and
- the Guidelines issued by the Australian Information Commissioner under s 93A of the *Freedom of Information Act 1982* (the **FOI Guidelines**).

Postal Address: PO Box 6500, CANBERRA ACT 2600

Telephone: +61 2 6271 5849 Fax: +61 2 6271 5776 www.pmc.gov.au ABN: 18 108 001 191

Reasons

Section 24A(1) of the FOI Act provides that:

An agency or Minister may refuse a request for access to a document if: (a) all reasonable steps have been taken to find the document;

and

(b) the agency or Minister is satisfied that the document:

(i) is in the agency's or Minister's possession but cannot be found; or

(ii) does not exist.

The Department conducted department-wide keyword searches of its email and filing systems for the documents you requested. After extensive reviews of these search results, no documents relevant to your request were identified. Accordingly, I am satisfied that all reasonable steps have been taken to find documents relevant to your request, and that the requested documents cannot be found or do not exist. I have therefore decided to refuse your request under section 24A(1)(b) of the FOI Act.

Review rights

Information about rights of review is available at <https://www.oaic.gov.au/freedom-of-information/reviews-and-complaints/>.

Complaint rights

You may make a complaint to the Information Commissioner about the Department's actions in relation to this request. Making a complaint about the way the Department has handled an FOI request is a separate process to seeking review of the Department's decision.

Further information about how to make a complaint is available at <https://www.oaic.gov.au/freedom-of-information/reviews-and-complaints/make-an-foi-complaint/>.

Yours sincerely

Petra Gartmann Assistant Secretary Legal Policy Branch 14 April 2022

He is (or was a well revered person who won a scholarship to a doctorate which he completed.

A decision by Ms Petra Gartmann Assistant Secretary Legal Policy Branch (FOI/2022/045) on 14th April 2022, of the Office of Prime Minister and Cabinet did a 180 and reported to him there was nothing to release as per the reasons cited:

Reasons

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(b) the agency or Minister is satisfied that the document:

(i) is in the agency's or Minister's possession but cannot be found; or (ii) does not exist.

It was signed by

Petra Gartmann Assistant Secretary Legal
Policy Branch 14 April 2022

Kate Watson of
kate.watson@hbalegal.com

Bio reads:

Experience

Kate joined us in early 2020 to establish HBA Legal's Canberra presence.

Kate has over 20 years' experience in the industry and specialises in federal workers' compensation. She is widely known within Canberra for being an expert in all issues arising under the Safety, Rehabilitation and Compensation Act 1988.

Kate graduated from the Australian National University with Bachelor of Laws and Bachelor of Science (1999) and was admitted as a solicitor of the Supreme Court of the Australian Capital Territory in 2000.

Expertise

Prior to joining HBA, Kate spent two and a half years in a Special Counsel role with a Sydney-based law firm acting for respondents in the Administrative Appeals Tribunal and

Federal Court.

Kate's career has also included seven

years in-house with Comcare in various roles including as its Chief Legal Officer (Claims & Liability Management) and Director of the SRC Legal team.

During Kate's in-house roles with Comcare she sat as a member of Comcare's Claims and Liability Management Executive. In addition, she advised Comcare's CEO and Executive in relation to significant and high profile AAT and court cases, as well as directed the strategy in relation to these. Her role included advising the Executive General Manager, Claims and Liability, on numerous issues including premium calculations, proposed changes to the SRC Act and the then proposed exit of the ACT Government from the Comcare scheme.

Prior to life at Comcare, Kate spent eight years with the Australian Government Solicitor where she was seconded to both the Australian Taxation Office and Department of Veterans' Affairs.

The many varying legal environments
Kate

has worked in means she brings to the table additional very useful perspective when interacting with clients in private practice.

Why clients like her

Kate knows her stuff without hesitating (as a true expert does!). She's a clear communicator and pragmatic negotiator with the client's best interest at the heart of everything she does. Her time in-house at Comcare has given her a true understanding of the ins and outs of the Federal Government

She is the lawyer who is opposing Dr McLean at the AAT, for Dr McLeans Workers Compensation rights and claim.

Dr Mclean has repeatedly said he will not proceed unless he has an advocate or

lawyer, but the member keeps pushing it ahead. Dr McLeans rights to representation under the charter of human rights of people for a disability is wilfully ignored.

Ms Wilson willingly exploits Dr McLean, and consciously is party to the systemic oppression to rob Dr McLean of prosperity that is opposing legal principles as a practicing lawyer.

In fact, Dr Mclean pointed this out to the attorney general, predicting that because of this - he will lose his work cover entitlements.

The attorney general, having been shown evidence that a movement exists to exploit him, and that Paul Fowler, the individual who rejected Dr Mclean under a section of the SRC act, was the old boss at WorkSafe in Victoria, the organisation that wouldn't assist Dr Mclean and kept pointing him to Comcare in order to set

him up to fail.

She responded in a manner of identifying Dr Mclean with 'illness' and referred him to a helpline.

(REF MC21-048015 from Security,
Emergency and Administrative Law
Branch
Attorney-General's Department)

This is unsurprising given the negative dealing he has had with systemic government agencies.

These agencies all acted with intention or omission to either rob Dr McLean of prosperity or identify and victimise him with 'illness.' And exploit him forgo good reason as 'psychotic' when indeed, he is right and just in his accusations of the Government as a formiddable force of tyranny that has identified vilified and victimised him.

On 6th jan 2022 The Attorney general replied to Dr McLean (MC21-048015) rejecting the systemic oppression that led to millions of dollars in detriment and referred him to SANE helpline.

After his PhD he worked within the community as a registered allied health professional assisting marginalised people, as he had done in altruism for 25_ years.

He would be also on the Governments radar because his former partner Steve, Stefen, or Stefan(depending under which Tax ID you refer to), still owes him over \$500000.

Steve was a former ASIO employee.

Additionally, Dr McLean was driven to torture being unacknowledged and his valid evidence before a court rejected by

HCC, MHCC, AHPRA, NHPOPC, The Police, IBAC, The Victorian inspectorate, and MP Greg Hunt for willingly silencing evidence that was valid before a court that was the subject of a complaint for Dr Whitaker. Dr Whitaker has no ABN nor is registered for GST.

Mr Whitakers Lawyer, Mr Ball, of Ball and Partners, actually is a top notch lawyer who has sat on the national legal bar and informs Government policy.

Dr McLean has never been able to access litigation which is in contrast to the Charter of human rights of people with a disability ratified by the Government in 2008 and is reflective of the pure power of people protecting money privilege and power.

Dr Mclean has suffered the following economic losses via being set up to fail systemically:

AHRC: over 1 million dollars

AFCA: he was banned from them having exposed a delay deny defer method that left him a vagrant, losing him over 1-2 million dollars.

HCF: He caught out Sheena Jack CEO overseeing edited versions of PDF's fraudulently, and they not only banned him and place him under investigation, but still owe him \$75000

Weribee Mercy Hospital: The scene of where this government systemic oppression led him with malpractice, to a 'fatal' suicide.

It left Dr McLean with a potential brain injury from the complete loss of his blood and being discovered by accident with no observable pulse. Dave Stevenson the CEO baits Dr McLean to sue him directly, knowing full well he is powerless, and the Government condones his 'fatal' injury by

Ben Calder the Ombudsman.

Dr McLean understands that the reasons behind this unfortunate locking of horns means the government will either have to admit a conspiracy to pervert the course of justice that ended up in his murder, and then further extended the oppression via a continuing delay deny defer model exploiting him and denying him a lawyer and legal privilege.

He doesn't expect the prime Minister to ignore this, given that the evidence needed for a prosecution to demonstrate a conspiracy to pervert the course of justice in the high court already exists.

Yet if The prime Minister chooses to do so, he is condoning:

Murder

Pedophiles

Rape

Drug Trafficking

Conspiracy to pervert the course of justice

Dr Mclean would like to have a simple life away from death threats homelessness and vagrancy.

This requires an immediate bursary of 50k a month - until the detriment can be calculated.

No liability is expected to be officially registered of there Government of his systemic killing, but he reserves the right:

- To be a whistleblower,
- To have a home
- To have medication
- To have human dignity shown to him
- To have access to litigation

Additionally to access his fair and equitable assets split from former partner and ASIO agent Steve Stefan Stefan Iasonidis,

(Dr McLean will accept \$250K immediately to put the issue to sleep- please forward this to Mr Iasonidis and no mention will be made of the tax department and ASIO and further AGIS covering up his 1.2 million tax fraud and name changes from **Stefen** to **Stefan** for the purposes of tax evasion-see his sole trader registration online)

Claim. Number Melbourne health

